

STATE OF NEW YORK

2292--A

2025-2026 Regular Sessions

IN SENATE

January 16, 2025

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, the navigation law and the vehicle and traffic law, in relation to enacting the whale awareness act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "whale
2 awareness act".

3 § 2. Article 13 of the environmental conservation law is amended by
4 adding a new title 9 to read as follows:

TITLE 9

WHALE AWARENESS ACT

7 Section 13-0901. Marine mammal interaction recommendations and educa-
8 tional materials.

9 13-0903. Distribution of materials.

10 § 13-0901. Marine mammal interaction recommendations and educational
11 materials.

12 The department shall establish recommendations and educational materi-
13 als for reduction of marine mammal interactions. In developing such
14 recommendations and educational materials, the department shall consult
15 with the port authority of New York and New Jersey, the department of
16 transportation, and any other relevant agencies, and such agencies shall
17 provide appropriate assistance to the department. In furtherance of the
18 foregoing, the department shall also seek input from the United States
19 coast guard, the national oceanic and atmospheric administration and the
20 marine mammal commission. For purposes of this section, "marine mammal
21 interaction" means an act that constitutes harassment within the meaning
22 of 16 U.S.C. 1362.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD04652-03-5

1 § 13-0903. Distribution of materials.

2 Recommendations and educational materials developed pursuant to
3 section 13-0901 of this title shall be provided to registrants of
4 vessels registered in the state in accordance with section twenty-two
5 hundred fifty-one of the vehicle and traffic law.

6 § 3. Section 75 of the navigation law, as amended by chapter 361 of
7 the laws of 2013, is amended to read as follows:

8 § 75. Educational program. In order to protect the public interest in
9 the prudent and equitable use of the waters of the state and enhance the
10 enjoyment of pleasure boating and other sports thereon, the commissioner
11 shall initiate and put into effect a comprehensive educational program
12 designed to advance boating safety, which provides for the training of
13 all boat operators in the safe operation of vessels including personal
14 watercraft and specialty prop-craft. Such educational program shall
15 include basic information regarding the prohibitions against harassment
16 of marine mammals within the meaning of 16 U.S.C. 1362.

17 § 4. Section 2251 of the vehicle and traffic law is amended by adding
18 a new subdivision 10 to read as follows:

19 10. Marine mammal interaction prevention. In issuing a registration
20 pursuant to this section with respect to any registration application
21 where the address therein is in the county of Suffolk, Nassau, Kings,
22 Queens, New York, Richmond, Bronx, Westchester, or Rockland, the commis-
23 sioner shall also provide marine mammal interaction prevention recommen-
24 dations and educational materials developed pursuant to section 13-0901
25 of the environmental conservation law.

26 § 5. Severability. If any clause, sentence, paragraph, subdivision,
27 section or part of this act shall be adjudged by any court of competent
28 jurisdiction to be invalid, such judgment shall not affect, impair, or
29 invalidate the remainder thereof, but shall be confined in its operation
30 to the clause, sentence, paragraph, subdivision, section or part thereof
31 directly involved in the controversy in which such judgment shall have
32 been rendered. It is hereby declared to be the intent of the legislature
33 that this act would have been enacted even if such invalid provisions
34 had not been included herein.

35 § 6. This act shall take effect on the one hundred eightieth day after
36 it shall have become a law.